

The Punjab General Sales Tax (Amendment) Act, 1990

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[The Punjab General Sales Tax \(Amendment\) Act, 1990](#)

[President's Act](#)

[No. 3 of 1990](#)

[\[Dated 16.2.1999\]](#)

G.S.R. 111(E). - In exercise of the powers conferred by section 87 of the Punjab Re-organisation Act, 1966 (31 of 1966), the Central Government hereby extends to the Union Territory of Chandigarh, the enactments specified in column (1) of the Schedule annexed hereunder, as in force in the State of Punjab on the date of this notification, subject to the modifications specified in the corresponding entries in column (2) of the said Schedule :

[Schedule](#)

[1.](#)

In section 2, for the words and figures "the Punjab General Sales Tax Act, 1948", the words and figures "the Punjab

general Sales Tax Act, 1948, as in force in the Union Territory to Chandigarh" shall be substituted;

2.

In section 3, (in new section 10-A) and in section 4 (in new section 30-A), for the words "State Government" and the word "State, the words, "Central Government" and "Union territory" shall respectively be substituted.

Enacted by the President in the Forty-first Year of the Republic of India

An Act further to amend the Punjab General Sales Tax Act, 1948.

In exercise of the powers conferred by section 3 of the Punjab Legislature (Delegation of Powers) Act, 1987, the President is pleased to enact as follows:-

1. Short title and commencement.

(1)

This Act may be called the Punjab General Sales Tax (Amendment) Act, 1990.

(2)

It shall come into force at once.

2. Amendment of section 5.

- In the Punjab General Sales Tax Act, 1948 (hereinafter referred to as the principal Act), in section 5, in sub-section (1), for the words "seven paise in a rupee" and "ten paise in a rupee", the words "eight paise in a rupee" and "twelve paise in a rupee" shall, respectively, be substituted.

3.

Insertion of new section 10A.

- In the principal Act, after section 10, the following section shall be inserted, namely:-

"10-A. "Notwithstanding anything to the contrary contained in this Act, the State Government, if satisfied that it is necessary or expedient so to do in the interest of industrial development of the State, may defer the payment of tax due against such class of industries, for such period, either prospectively or retrospectively and subject to such conditions, as may be prescribed."

4.

In the principal Act after section 30, the following section shall be inserted, namely :-

"30-A. The State Government may, if satisfied that it is necessary or expedient so to do in the interest of industrial development of the State, exempt such class of industries from the payment of tax, for such period and subject to such conditions, as may be prescribed."

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